

#	Case Name	Tentative
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51.		
52.	Soto v. YPJK Management Inc. 2025-01489927	<i>Demurrer</i> Defendant YPJK Management, Inc. dba Tokai Sushi demurrer to the 1st through 11th causes of action of the First Amended Complaint of Esteban Soto is SUSTAINED in part and OVERRULED in part as follows: The demurrer is SUSTAINED as to the 4th cause of action. To prevail on a failure to engage in the interactive process claim under Cal. Gov't Code § 12940(n), a plaintiff must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. <i>Shirvanyan v. Los Angeles Community College Dist.</i> (2020) 59 Cal.App.5th 82, 96. While an employee cannot necessarily be expected to identify all possible accommodations during the interactive process itself, once litigation begins the employee must be able to identify an available accommodation that the interactive process should have produced. <i>Scotch v. Art Institute of California</i> (2009) 173 Cal.App.4th 986, 1018-1019. The allegations of the 4th cause of action do not identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. The demurrer to the remaining causes of action is OVERRULED. The claims are properly alleged. <i>Motion to strike</i> Defendant's motion to strike is GRANTED in part and DENIED in part. The motion is GRANTED as to the punitive damages allegations contained in paragraphs 36, 52, 67, 90, 97, and 107, and Prayer for Relief 4. Plaintiff hasn't alleged sufficient specific allegations against defendant to support the punitive damages claimed. The motion to strike is DENIED as moot as to paragraph 82. The motion to strike is DENIED as to "all references to emotional distress damages." Defendant argues the allegations should be stricken simply because there is nothing in the prayer of the First Amended Complaint that seeks

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		emotional distress damages. But in <i>Young v. Bank of America</i>, (1983) 141 Cal.App.3d 108, 114, the court held that damages for pain, suffering, and emotional distress are general damages which need not be specifically pleaded in the prayer for relief. In other words, emotional distress allegations in the body of the complaint can support recovery even without a corresponding prayer. Plaintiff shall file an amended complaint, if any, within ten days of this order. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
53.		
54.	Williams v. Allegis Group, Inc. 2023-01330124	Defendant The Procter & Gamble Company's Motion to Set Aside Default and Default Judgment is GRANTED. (Code Civ. Proc. §473, subd. (d).) Moving Defendant has shown that valid service of process was not achieved over it, so any ensuing default and/or default judgment is void. The default judgment entered on 11/12/25 is hereby VACATED. Moving Defendant's default entered on 6/6/24 is hereby SET ASIDE. The case management conference is scheduled for January 25, 2027 at 9:00 a.m. in Department C28. Defendant Procter & Gamble shall provide notice.
55.	Hussien v. Alonso 2025-01534468	Specially appearing defendants Hidalgo Daniel Alonso and Patricia Hidalgo's motion to quash service of summons is GRANTED. (Code Civ. Proc., § 418.10, subd. (a) [authorizing motion]; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439 [proper service of summons is required for the court to obtain jurisdiction over a defendant]; <i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710 [plaintiff has burden of proof to demonstrate jurisdiction is proper].) Moving parties' evidence is sufficient to rebut any presumption of proper service established by the proofs of service of the summons and complaint filed by plaintiff in this action (ROA 10, 12). (Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section